

## **Question and Answers**

**Question 1:** Estimated Annual Quantity. Please confirm whether the estimated quantities shown are the total government requirement across all awardees, or the estimated quantity per awardee.

(The solicitation states the government intends to select between 3 and 5 awardees. We need to know if we are essentially competing for 1/3 or 1/5 of the provided quantities, given that the government intends to order approximately equal amounts from each awardee.)

**Answer 1:** This is a BPA so we intend to have at least 3 – 5 agreements at a time for this requirement. The estimated annual quantity is the estimate on what we will order annually amongst the vendors selected. We will base agreement establishments IAW the Addendum of 52.212-2 (lowest total evaluated price). By competing this up front, it allows the Government to either compete, direct award, or rotate orders after vendors are chosen. I typically rotate orders to the best of my capability as it allows all agreement holders to have a piece of the pie.

**Question 2:** Economic Price Adjustment. Please confirm if included clause FAR 52.216-2 “Economic Price Adjustment-Standard Supplies” limits the price adjustment described on Page 3: “The supplier's price list may be updated regularly in response to market conditions, but not more than once every three months.”

(FAR 52.216-2(c)(1) states: “The aggregate of the increases in any contract unit price under this clause shall not exceed 10 percent of the original contract unit price.” We need to know if future adjustments are limited to not more than 10% of the prices quoted in the TEP Worksheet.)

**Answer 2:** Because this is a BPA, the working on Page 3 will take precedence. If chosen as a vendor, you would be able to change your price every 3 months if needed or if it has been determined by the CO to change earlier. We have that clause in as protection to both parties.

**Question 3:** Price Adjustment. Please describe how price adjustments will work in practice. What documentation, if any, will be required to substantiate a request for price increase?

**Answer 3:** If requesting a change outside of the every 3 months, you would have to provide the documentation to me to make that decision as the CO.

**Question 4:** Marking and Labeling. What marking and labeling is required? This section of the solicitation (Packaging and Marking) is blank on Page 6.

**Answer 4:** The typical things such as calling out the order number and correct shipping information. That information will be called out on each individual order, if chosen. All shipments will be to TAFB.

**Question 5:** Rotation of Calls. Can the strict equalization of order amounts among BPA holders be waived if we provide significantly lower pricing than all other bidders?

(We don't understand why this BPA establishes competition at the individual call level, but then proposes to penalize the bidder with the best pricing by withholding future call opportunities so that higher priced bidders can win. Our understanding is that equitable distribution for BPAs for most agencies is limited to micro-purchases, which will not apply to these BPA calls. RFO 12.201-1(e)(3) certainly does not require equality of outcome for BPA holders. We advocate for equality of opportunity and not equality of outcome. Equality of outcome is contrary to the purpose of competition and will result in the government paying much higher prices for this BPA than it would under a pure competition model.)

**Answer 5:** I understand what you are saying above; however, there would have to be a significant price difference for us to only issue to one vendor. I'm not saying that it isn't unfeasible, but then that would drive the requirement away from a BPA...it would require vendors to be locked into a price for a duration of the contract and then 52.216-2 would be the only applicable way to change your price (flexible pricing changes as well as flexible ordering wouldn't exist anymore). Issuing the BPAs are best for all parties. Furthermore, my intent is to rotate orders so that all participating vendors benefit from the requirement.